

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, JULY 28, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**CAPTIAL ONE N.A. vs. MICHAEL D. VENEGAS
Case No. CL24-06461**

Defendant's Request for Jury Trial; and
Plaintiff's Request for Reclassification

TENTATIVE RULING

THE PARTIES ARE TO APPEAR. Where the above issues were not raised through formal law and motion, the Court is not issuing a tentative ruling.

**BANK OF AMERICA, N.A. vs. KENT LEON MECHAM
Case No. CL25-08288**

Motion to Deem Matters Admitted

TENTATIVE RULING

THE PARTIES ARE TO APPEAR.

At the hearing, the Court's tentative ruling is as follows: The unopposed motion to deem matters admitted is granted. Each of the requests in the requests for admissions is deemed to be admitted.

SILVERIO ROSALES vs. MAIN ELECTRIC SUPPLY COMPANY LLC; ET AL.
Case No. CU23-02346

Plaintiff's Motion to Compel

TENTATIVE RULING

The Parties are to appear.

LUCIA ACEVES VILLALOBOS vs. GENERAL MOTORS, LLC.
Case No. CU23-03523

Motion for Attorney's Fees;
Motion for Tax Costs

TENTATIVE RULING

Motion to Tax Costs

The matter was on calendar July 7, 2027 and the Parties appeared through Counsel. The Parties submitted on the Court's tentative ruling below.

Defendant's motion to tax costs is denied in part and granted in part.

Items in a memorandum of costs are prima facie evidence of their propriety if they appear on their face to be appropriate charges. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266.) The burden is on the party seeking to strike or tax costs to show that the items were not reasonable or necessary. (*Acosta v. SI Corp.* (2005) 129 Cal.App.4th 1370, 1380; *Ladas v. Cal. State Auto. Ass'n* (1993) 19 Cal.App.4th 761, 774.) A party seeking to strike or tax costs must submit evidence demonstrating that the costs were either unnecessary or unreasonable. (*Jones*, 63 Cal.App.4th at 1266; *County of Kern v. Ginn* (1983) 146 Cal.App.3d 1107, 1113.)

Defendant has not met its burden of demonstrating that the costs claimed for filing fees and service of process fees were not reasonable or necessary. Plaintiff prevailed on both discovery motions for which filing fees are sought and both motions were necessitated by Defendant's attempt to unilaterally narrow the scope of Plaintiff's claims. Service of process fees are explicitly authorized by statute (Code Civ. Proc. § 1033.5(a)(4)) and Defendant presents no evidence to suggest that the fees were not actually incurred or unnecessary to the conduct of the litigation. The Defendant's motion to tax filing fees and service of process fees is denied.

Mediation fees may be awarded in the court's discretion. (*Berkeley Cement Inc. v. Regents of University of California* (2019) 30 Cal.App.5th 1133, 1140. Where Plaintiffs in Song Beverly cases benefit greatly from mediation resulting in a high number of

settlements, the Court finds that it is appropriate for the Parties to equally share the costs of mediation. As such, Defendant's motion to tax the costs of mediation is granted.

Motion for Attorneys' Fees

The matter was on calendar July 7, 2027 and the Parties appeared through Counsel. The Court heard oral arguments. Plaintiff's Counsel argued that her billing records showed the following:

1. A total of 5.8 hours spent on the motion to compel further responses.
2. A total of 3.6 hours spent on the motion to compel the deposition of the PMQ.
3. A total of .6 hours spent on the motion for attorneys fees and motion to tax costs.

The Court has reviewed Plaintiff's billing records in comparison to Defendant's opposition motion at page 7:17-21

The only discrepancies that the Court has identified are as follows:

1. On May 16, 2025, Attorney Figura appeared for .5 hours for the handling attorney.
2. On the motion for attorney fees, there is no billing by Attorney Wood on January 19, 2026.
3. On the motion for attorney fees, there is no billing by Attorney Wood on May 6, 2026.

The Court finds that Attorney Wood billed 6.8 hours for the motion to compel further responses, 7.4 hours for the motion to compel PMQ deposition, and 1.1 hours for the motions for attorney fees and tax costs.

In addition, the Court's previous addition as to the billing of Attorney's Anvar, Walker, Schwartz, Figura, and paralegals was slightly miscalculated.

The Court modifies its previous tentative ruling to as follows:

Plaintiff's motion for attorneys' fees is granted in part. Plaintiff is awarded attorneys' fees in the amount of \$19,029.

Specifically, the Court reduces the hourly rates and taxes the number of hours spent as set forth below:

1. Attorney Wood:
 - (a) 3.8 hours from the 6.8 hours to draft a motion to compel further responses for requests for production.

- (b) 4.4 hours from 7.4 hours to draft a motion to compel the deposition of Defendant's PMQ..
- (c) .9 hours auditing billing records in preparation for the motion.

Total hours stricken = 9.1 hours.

The Court awards an additional 2 hours for preparation of reply briefing.

Net reduction in hours = 7.1 hours.

The Court finds a reasonable hourly billing rate for Attorney Wood at \$450 per hour.

Attorney Wood's claimed hours	=	41.7
less hours stricken	=	-7.1

34.6 hours at \$450 = \$15,570

- | | |
|-----------------------|------------------------------|
| 2. Attorney Anvar: | .3 hours x \$450 = \$135 |
| 3. Attorney Walker: | 2.7 hours x \$300 = \$810 |
| 4. Attorney Schwartz: | 1.3 hours x \$400 = \$520 |
| 5. Attorney Figura: | .3 hours x 350 = \$105 |
| 6. Paralegal: | 19.1 hours x \$100 = \$1,910 |

TOTAL (2) – (6) = \$3480

TOTAL ATTORNEY FEES: \$19,050

The Court finds that the supplemental declaration submitted by Plaintiff regarding her efforts to find local counsel lacks any specific detail as to her actual efforts in trying to secure local counsel. As such, Plaintiff has not met her burden to show that she is entitled to attorney hourly rates for the Los Angeles area.

The motion is timely. Judgment or dismissal has not been entered in this action and no notice of entry of judgment or dismissal has been served, either by the clerk or by a party. Notice of **conditional** settlement was filed on July 10, 2025, which specified that Plaintiff had to file a request for dismissal by January 10, 2026. No dismissal was filed and no party showed good cause why the case should not be dismissed.

Consequently, the clock to file a motion for attorneys' fees began to run on January 10, 2026. (Cal. Rules of Court, rule 3.1385(c)(2); *Hatlevig v. Gen. Motors LLC* (2026) 118 Cal.App.5th 644, 649-650.) The motion was filed on May 14, 2026, well before 180 days from the date of the dismissal.

No multiplier is awarded. The Court finds nothing novel, difficult, or out of the ordinary about the present case. Similarly, the Court does not find exceptional skill or exceptional results that would warrant a multiplier.

JESSE GRADY vs. FCA US, LLC; ET AL.
Case No. CU25-01670

Demurrer and Motion to Strike re: First Amended Complaint

TENTATIVE RULING

Defendants FCA US, LLC (“FCA”) and HANLEES CHRYSLER DODGE JEEP RAM OF NAPA (“HANLEES”) demur to Plaintiff JESSE GRADY’s first amended complaint (“1AC”) alleging (1) violation of Civil Code section 1793.2, subdivision (d), (2) violation of subdivision (b) of the same, (3) violation of subdivision (a)(3) of the same, (4) breach of the implied warranty of merchantability pursuant to Civil Code section 1791.1, (5) negligent repair, and (6) fraudulent inducement. Summarized, Plaintiff’s complaint alleges that FCA violated the Song-Beverly Consumer Warranty Act in that it failed to repair or repurchase Plaintiff’s 2018 Chrysler Pacifica (the “Vehicle”) after the Vehicle manifested defects within the warranty period and FCA concealed existence of the Vehicle’s 9-speed transmission defect from Plaintiff prior to purchase. HANLEES negligently stored, prepared, and/or repaired the Vehicle.

Defendants simultaneously move to strike the complaint’s prayer for punitive damages.

Legal Standard on Demurrer. “The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Statute of Limitations. Code of Civil Procedure section 871.21, subdivision (a) provides that an action covered by section 871.20 shall be commenced within one year of expiration of the applicable warranty. Section 871.21, subdivision (b) provides a six-year statute of repose for the same actions, stating that no such action shall be brought later than six years after the date of original delivery of the motor vehicle. Plaintiff obtained the Vehicle on April 24, 2018, which means that his statute of limitations on the applicable five-year warranty and the statute of repose both expired on April 24, 2024. (1AC at ¶¶ 7-8, Exhibit A [warranty showing five-year duration].) However, section 871.21 only went into effect on January 1, 2025. It would be unjust to hold Plaintiff to a statute of repose that expired before it existed. The court finds that section 871.21 does not bar any of Plaintiff’s causes of action.

Rosefield Packing Co. v. Superior Court (1935) 4 Cal.2d 120 (*Rosefield*) does not support applying Code of Civil Procedure section 871.21's time limitation to the instant case. *Rosefield* featured a lawsuit by Planters against Rosefield Packing Company, filed August 17, 1929. (*Id.* at p. 121.) At the time Code of Civil Procedure section 583 stated that an action not brought to trial within five years after the filing of the answer was subject to mandatory dismissal; on August 21, 1933 that statute was amended to state that an action not brought within five years of the filing of the action, rather than the answer, was subject to mandatory dismissal. (*Ibid.*) *Rosefield* moved to dismiss Planters's action for lack of prosecution under the amended statute on October 11, 1934. (*Id.* at pp. 121-122.) Our state high court observed first off that the statute at issue was expressly retroactive. (*Id.* at p. 122.) It then stated that while a retroactive statute applying to criminal matters or depriving a person of a vested right is unconstitutional a statute merely applying a retroactive change to rules of civil procedure, particularly including statutes of limitation and the like, may "be made applicable to pending proceedings" if there is a reasonable time permitted for the affected party to avail himself of his remedy before the statute takes effect. (*Ibid.*) The statute at issue in *Rosefield* was constitutional as applied to Planters because it went into effect on August 21, 1933 and Planters's new trial deadline was August 17, 1934; this meant Planters had nearly a year to arrange for trial. (*Id.* at p. 123.) Our state high court distinguished cases Planters offered to support its position on the basis that in those cases the newly shortened periods for action expired before the shortening laws became effective. (*Ibid.*)

Rosefield hinges its decision supporting a shortened timer on the fact that the plaintiff there had a year to act after the relevant statute became effective. It pointedly distinguished situations like that FCA's argument would effect in the instant case where the period for action expires before the statute becomes effective. Further, the statute under analysis in *Rosefield* was expressly retroactive but Code of Civil Procedure section 871.21 is not.

Sufficiency of Pleading Fraudulent Inducement. *Dhital v. Nissan North America Inc.* (2022) 84 Cal.App.5th 828 (*Dhital*) offers applicable precedent as to the sufficiency of Plaintiff's fraudulent inducement cause of action.

In *Dhital* the plaintiff brought a lemon law action over his Nissan vehicle's faulty transmission and additionally alleged fraudulent inducement. (*Dhital, supra*, 84 Cal.App.5th at p. 834.) The trial court sustained Nissan's demurrer on the fraudulent inducement cause of action, deciding that the economic loss rule barred the claim. (*Id.* at p. 835-836.) The appellate court reversed, finding both that the economic loss rule did not bar the claim and that the plaintiff's allegations sufficiently stated fraudulent inducement (insufficiency of pleading being an alternative ground for affirming the trial court ruling that Nissan urged on appeal). (*Id.* at p. 845.)

Regarding the economic loss rule, the *Dhital* court first described the rule: "[i]n general, there is no recovery in tort for negligently inflicted 'purely economic losses,' meaning financial harm unaccompanied by physical or property damage." (*Sheen v. Wells Fargo*

Bank, N.A. (2022) 12 Cal.5th 905, 922; *Dhital, supra*, 84 Cal.App.5th at p. 837.) “[W]here a purchaser’s expectations in a sale are frustrated because the product he bought is not working properly, his remedy is said to be in contract alone, for he has suffered only ‘economic’ losses... The economic loss rule requires a purchaser to recover in contract for purely economic loss due to disappointed expectations, unless he can demonstrate harm above and beyond a broken contractual promise.” (*Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 988 (*Robinson*).) Examples of such harm include “where a breach of duty directly causes physical injury; for breach of the covenant of good faith and fair dealing in insurance contracts; for wrongful discharge in violation of fundamental public policy; or where the contract was fraudulently induced.” (*Id.* at pp. 989-990.) “[I]n each of these cases, the duty that gives rise to tort liability is either completely independent of the contract or arises from conduct which is both intentional and intended to harm. (*Ibid.*) The *Dhital* court noted that *Robinson* states its point quite plainly: fraudulent inducement is an exception to the economic loss rule. (*Dhital* at p. 839.) *Dhital* further observed that although *Robinson* discussed affirmative misrepresentations from the defendant as opposed to fraudulent concealment it did not state that only cases of affirmative misrepresentation qualify for the exception. (*Ibid.*) Rather, *Robinson*’s plain statement was that tort recovery should be allowed where the underlying duty is independent of the contract, and fraudulent inducement by concealment originates independent of the resulting contract because it literally predates formation of the contract. (*Id.* at pp. 840-841.)

Robinson and *Dhital* make it clear that the economic loss rule does not bar Plaintiff’s fraudulent inducement claim in the instant case. Plaintiff’s claim is based on conduct independent of the resulting contract and is expressly authorized in *Robinson*.

Regarding sufficiency of pleading, the *Dhital* court again first discussed the basic law. Fraudulent inducement is a subset of fraud and so requires the same elements be proven: (1) a misrepresentation, (2) knowledge of falsity, (3) intent to induce reliance, (4) justifiable reliance, and (5) damages. (*Dhital, supra*, 84 Cal.App.5th at p. 843; *Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294-295.) Fraud must always be pleaded with specificity. (*Linear Technology Corp. v. Applied Materials, Inc.* (2007) 152 Cal.App.4th 115, 132.) The *Dhital* plaintiff’s allegations included that Nissan manufactured and distributed more than 500,000 vehicles with faulty transmissions; that Nissan knew or should have known of the faults from premarket testing and consumer complaints to both the National Highway Traffic Safety Administration (“NHTSA”) and to Nissan itself; and that Nissan issued Technical Service Bulletins (“TSBs”) regarding the transmission problem. (*Dhital* at pp. 833-834.) The *Dhital* court found all of this sufficient: the allegations stated that Nissan made lemons with transmission defects, Nissan knew of the transmission defects and the hazards they posed, Nissan had exclusive knowledge of the defects but did not disclose them to consumers, Nissan intended to conceal the information, and the plaintiff would not have bought the vehicle in question had the plaintiff known the information. (*Id.* at p. 844.) Allegations that the plaintiff bought the car from a Nissan dealership with a Nissan-backed warranty and that dealerships are Nissan’s agents for purposes of sale sufficed to state a buyer-seller relationship between the parties. (*Ibid.*) The court rebuffed Nissan’s argument that the

plaintiff was not specific enough about what it should have disclosed where the plaintiff described the effects of the transmission defect and alleged that Nissan knew of these effects from premarket testing and consumer complaints. (*Ibid.*)

Plaintiff's allegations line up with those approved in *Dhital*. Plaintiff here describes the transmission defect at issue as causing "hesitation on acceleration, loss of power, hard and/or harsh shifts, and/or jerking." (1AC at ¶ 29.) Plaintiff alleges that FCA knew or should have known of the transmission system defect from pre- and post-production market testing, consumer complaints, and warranty data. (*Id.* at ¶ 32.) Plaintiff alleges that FCA concealed information about the transmission defect that would have changed Plaintiff's purchase decision had it been known to Plaintiff. (*Id.* at ¶¶ 33-34.) Plaintiff states sufficient allegations of a transactional relationship with FCA where Plaintiff alleges acquiring the Vehicle from FCA's authorized dealer. (*Id.* at ¶ 9.)

Economic Loss and Negligent Repair. Per the above, the economic loss rule prevents "recovery in tort for negligently inflicted 'purely economic losses,' meaning financial harm unaccompanied by physical or property damage." (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 922; *Dhital, supra*, 84 Cal.App.5th at p. 837.) Plaintiff's cause of action for negligent repair states that he took the Vehicle to HANLEES for repair but HANLEES did not properly store, prepare, and/or repair the Vehicle, causing damages. (1AC at ¶¶ 90-94.) The complaint does not state that the cause of action is based on a contract between Plaintiff and HANLEES, nor does it show that Plaintiff suffered only economic loss. The economic loss rule does not bar Plaintiff's cause of action for negligent repair.

Motion to Strike. Code of Civil Procedure section 436, subdivision (a) permits a court to strike out any irrelevant, false, or improper matter inserted in any pleading, upon a motion or in its discretion. Irrelevant matters are those not essential to the statement of a claim or defense or not pertinent to or supported by an otherwise sufficient claim or defense and demands for relief not supported by the allegations. (Code Civ. Proc. § 431.10.) "The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice;" therefore, a motion to strike may not be based upon extrinsic evidence such as a declaration. (Code Civ. Proc. § 437, subd. (a).)

Civil Code section 3294, subdivision (a) provides that punitive damages are only available in actions not arising from breach of contract if is "proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice." This means that a plaintiff's pleading asking for punitive damages must plead facts to support a finding of oppression, fraud, or malice. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) "Malice" means conduct intended to cause injury or despicable conduct carried on with a willful and conscious disregard of the rights or safety of others; "oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights; and "fraud" means intentional misrepresentation, deceit, or concealment of a material fact with intention to cause injury. (Civ. Code § 3294, subd. (c).) "Despicable" conduct refers to that which is

“base, vile, or contemptible” and is something more than simple willful and conscious disregard for others. (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.)

Plaintiff has sufficiently stated a cause of action sounding in fraud, which supports imposition of punitive damages. (Civ. Code, § 3294, subd. (a) [fraud as basis for punitive damages].) This is so even where he simultaneously alleges lemon law violations. (*Anderson v. Ford Motor Co.* (2022) 74 Cal.App.5th 946 [permitting punitive damages on fraudulent inducement claim alongside civil penalties on Song-Beverly claim].)

Conclusion. Defendants’ demurrer is overruled. Defendants’ motion to strike is denied.

VIDA LARA; ET AL. vs. WINNRESIDENTIAL CALIFORNIA L.P.; ET AL.
Case No. CU25-06641

Plaintiff VIDA LARA’s Motion to Compel Further Responses to Special Interrogatory No. 1 Propounded on Defendants WINNRESIDENTIAL L.P. and LLAM REALTY MANAGEMENT INC.

TENTATIVE RULING

THE PARTIES ARE TO APPEAR.

LONDON ROBINSON vs. HARBINGER PRODUCTIONS, INC.
Case No. CU25-11852

Defendant’s Motion to be Relieved as Counsel

TENTATIVE RULING

The unopposed motion to withdraw by Defense Counsel for Defendant HARBINGER PRODUCTIONS, INC., is granted.

CLAUDIA GONZALEZ vs. MEYER CORPORATION U.S. and DIEGO PEREZ
Case No. FCS058246

Plaintiff’s Motion to Conduct Discovery of MEYER’s Financial Condition

TENTATIVE RULING

Plaintiff CLAUDIA GONZALEZ moves for leave to conduct discovery of Defendant MEYER CORPORATION U.S.'s ("MEYER") financial condition. Plaintiff relevantly alleges causes of action against MEYER for discrimination and harassment in violation of the Fair Employment and Housing Act, based on alleged derogatory comments and conduct from Defendant DIEGO PEREZ ("PEREZ"), Plaintiff's supervisor at MEYER.

The court received supplemental briefing from Plaintiff and from MEYER as authorized at the July 10, 2026 hearing.

The Court has also considered the arguments of counsel regarding the admissibility of Plaintiff's deposition testimony in light of CCP Section 2025.620.

Legal Standard. Code of Civil Procedure section 3295 states that a plaintiff may not conduct pretrial discovery of a defendant's financial condition for purposes of assessing punitive damages unless that plaintiff first obtains an order permitting discovery from the court. Such an order may only be granted upon motion "supported by appropriate affidavits" such that the court determines that the plaintiff has a substantial probability of prevailing on his claim for related damages.

To prevail on such a motion a plaintiff must demonstrate a substantial probability that he will prevail on his claim for punitive damages at trial; this requires the court to weight the evidence submitted in favor of and in opposition to the motion and find that it is very likely – not simply likely, but very likely – that the plaintiff will prevail on the punitive damages claim at trial. (*Jabro v. Superior Court* (2002) 95 Cal.App.4th 754, 758.) In turn, Civil Code section 3294, subdivision (a) provides that punitive damages are only available in actions not arising from breach of contract if is "proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice." "Malice" means conduct intended to cause injury or despicable conduct carried on with a willful and conscious disregard of the rights or safety of others; "oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights; and "fraud" means intentional misrepresentation, deceit, or concealment of a material fact with intention to cause injury. (Civ. Code § 3294, subd. (c).) "Despicable" conduct refers to that which is "base, vile, or contemptible" and is something more than simple willful and conscious disregard for others. (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.)

An employer shall only be liable for punitive damages based on its employee's acts where the employer had advance knowledge of the employee's unfitness and employed him with a conscious disregard for the rights and safety of others or authorized or ratified the employee's wrongful conduct. (Civ. Code, § 3294, subd. (b).) A corporate employer can be held liable for punitive damages under those rules if the advance knowledge or authorization or ratification was on the part of an officer, director, or managing agent. (*Ibid.*) Ratification generally occurs where the employer demonstrates an intent to adopt or approve behavior. (*College Hospital, supra*, 8 Cal.4th at p. 726.) Ratification in the corporate context requires actual knowledge of the

conduct and its outrageous nature. (*Ibid.*) A plaintiff need not necessarily establish that any particular committee or officer of the corporation acted on a particular date with malice, though; it is enough if the evidence permits a clear and convincing inference that authorized persons within the corporate hierarchy acted despicably. (*Romo v. Ford Motor Co.* (2002) 99 Cal.App.4th 1115, 1140 (*Romo*), disapproved on other grounds in *People v. Ault* (2004) 33 Cal.4th 1250, 1272 at fn. 15.) That is, a plaintiff may satisfy the “managing agent” requirement in the corporate context through evidence, even circumstantial evidence, showing information in the possession of the corporation and the structure of management decision-making that permits an inference that the information in fact moved upward to a point where corporate policy was formulated. (*Id.* at p. 1141.)

Objections to Evidence. MEYER objects to several pieces of evidence in the Declaration of Chambord Benton-Hayes in Support of Motion.

MEYER’s #1-2, 17. Plaintiff cannot use her own interrogatory responses as evidence. (Code Civ. Proc., § 2030.410.) These objections are sustained.

MEYER’s #13, 29-32. What Plaintiff told Ms. Luciano is hearsay. While hearsay exceptions might come into play later at trial, there is no hearsay exception at this time. These objections are sustained.

MEYER’s #14, 42, 44, 46. What Plaintiff told Ms. Calisa is hearsay. While hearsay exceptions might come into play later at trial, there is no hearsay exception at this time. These objections are sustained.

MEYER’s Supplemental #7. What Ms. Jarrett told Plaintiff is hearsay. While hearsay exceptions might come into play later at trial, there is no hearsay exception at this time. This objection is sustained.

MEYER’s Supplemental #1,2,3. Defendant’s objections pursuant to CCP Section 2025.620, Civil Code Section 3295, and CCP Section 2015.5 are overruled. Unlike CCP Section 2030.410, there is no express prohibition related to CCP Section 2025.620 prohibiting the use of deposition testimony by the responding party. The court finds that the requirement of “appropriate affidavits” under CCP Section 3295 is sufficiently satisfied by use of sworn deposition testimony.

Likelihood of Proving Punitive Damages Against MEYER. Plaintiff’s supplemental declaration of counsel filed July 14, 2026 introduces into evidence Plaintiff’s deposition, wherein she testifies that PEREZ made statements including and not limited to the following during the course of her employment with MEYER: “men are always right,” “men are the head of the household,” “men make the rules.” This evidence of repeated harassing statements demonstrates a substantial likelihood that it can be proven at trial that PEREZ engaged in malicious and/or oppressive harassment of Plaintiff based on her sex and/or gender, in turn supporting potentially supporting imposition of punitive damages against PEREZ.

The court recognizes MEYER's argument in supplemental opposition that the standard has not been met. MEYER characterizes PEREZ's comments as isolated incidents. However, a pattern is necessarily formed of incidents with common features. Plaintiff's evidence of PEREZ's harassing comments is substantially likely to support a finding of a pattern of harassment.

Plaintiff's evidence also demonstrates a likelihood of proving at trial that MEYER ratified PEREZ's harassing conduct and so is potentially liable for punitive damages. Plaintiff notified MEYER of PEREZ's aggressive conduct in a March 4, 2021 email to MEYER's Vice President of Human Resources Jennifer Bledsoe. In a subsequent email on March 9, 2021 to Chris Banning, MEYER's president, Bledsoe admitted and conveyed to Banning awareness that PEREZ's aggressive conduct was directed at his female direct reports, suggesting animus based on sex and/or gender, and that PEREZ's aggressive conduct was driven at least in part by cultural animus. Later that same week Banning increased PEREZ's pay twice, providing evidence of approval of PEREZ's conduct. When MEYER reduced its workforce for the stated reason of cost savings, Plaintiff was the only employee terminated; further, Banning approved the cost savings proposal as it was presented by PEREZ. This evidence further suggests ratification of PEREZ's actions against Plaintiff.

MEYER's argument in opposition speaks to a lack of evidence that MEYER failed to perform any promised investigation of PEREZ and does not address the identified evidence substantially likely to support a finding of ratification.

The court finds that the evidence presented suffices, for purposes of the instant motion, to demonstrate that Plaintiff has a substantial probability of obtaining punitive damages against MEYER at trial based on ratification of PEREZ's harassing conduct.

Conclusion. Plaintiff's motion is granted.

THE PARTIES ARE TO APPEAR to address deadlines for the above financial discovery.

Department 7 is inviting you to a scheduled ZoomGov meeting.
Join ZoomGov Meeting

<https://solano-courts-ca-gov.zoomgov.com/j/1611554664?pwd=T3U4QlBGWWNWaGlhXJTcGxIVHRXZz09>

Meeting ID: 161 155 4664

Passcode: 818575

One tap mobile

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